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**The Cyprus Problem: the assessment of the 1997-2004 United Nations mediation
and the rejection of the Annan Plan**

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INTRODUCTION

The dispute between the Greek and Turkish Cypriots on the Mediterranean island of Cyprus is one of the most protracted ethnic conflicts in the world today. The Cyprus problem - as the dispute has become internationally known – is in its origins a conflict where security and identity concerns overlap. However, its nature has changed since the first intercommunal tensions in mid-1950s. The anti-colonial uprising against the British sparked ethnic divisions on the island and led to an independent Republic of Cyprus in 1960 bestowed with a complex governance structure that satisfied none of the parties. Violent clashes soon resumed and led to a constitutional breakdown in 1963-64 culminating in a coup d'état against the governing Greek Cypriot leadership in 1974. The subsequent military intervention by Turkey led to the territorial and ethnic division of the island that still persist today.

Over the years, the Cyprus problem has been subject of numerous third-party mediation efforts.¹ However, none of them has managed to bring the conflict to an end. As Michael (2007: 588) pointedly remarks, the Cyprus problem “eluded third-party mediation for almost half a century”, “earning the island the title the 'diplomats' graveyard” (Ker-Lindsay 2011: xii).

This paper assesses the most recent UN mediation effort that resulted in a comprehensive settlement proposal known as the Annan Plan. The first section introduces Byman's theory of ethnic conflicts and outlines the causes and the changing nature of the Cyprus problem. It looks at its evolution through key phases - the anti-colonial struggle, the 1960 independence, the 1963-64 constitutional breakdown, the 1974 coup d'état and the Turkish invasion. The second section turns to the concept of mediation and the effort led by the UN Secretary General Kofi Annan from 1997 until the Greek Cypriot rejection of the final Plan on 24 April 2004. The paper outlines the main elements of the Plan and assesses the reasons for its failure, analyzing its content, as well as the timing and methods adopted by the UN mediation. The concluding section turns to the two main lessons learnt. First, the

¹ Fisher (2001) offers a useful overview of official and unofficial initiatives.

failure of the mediation to adequately address Greek Cypriot concerns about security and governance in the new United Cyprus Republic and second, the failure of the UN mediation to understand the perceptions of costs and benefits in Nicosia in case of a prolonged *status quo*, as well as pragmatic reasons to reject the Annan Plan.

1) THE CAUSES AND THE CHANGING NATURE OF THE CYPRUS PROBLEM

According to Byman (2002: 13) four main causes drive ethnic conflict: the ethnic security dilemma, status concerns, hegemonic ambitions, and the aspirations of elites. First, the ethnic security dilemma occurs when “no sovereign authority can ensure a group's security“ (Byman 2002: 14). Groups therefore arm to ensure their own survival, but by doing so increase perceptions of their hostility and push intercommunal relations towards mistrust and, ultimately, violence. Second, a group can equally be concerned about its status, whereby threats to its way of life, institutional representation and role can result in perceived threats to its cultural survival.² Third, hegemonic ambitions of one group can lead to “subjugation of other groups, forcing them to accept a lesser economic, political, and social position“ (Byman 2002: 14). Lastly, competition among the groups' elites can deliberately exploit and emphasize ethnic differences that might otherwise not be a political issue at all. Such strengthening of ethnic identities can empower political leaders, enabling them “to gain power and preserve it“, while at the same time increasing tensions among previously indifferent ethnic groups (Byman 2002: 35). Over the years, the Cyprus problem has featured all of the above in varying degrees.

FIRST PHASE: ANTI-COLONIAL STRUGGLE AND THE 1960 INDEPENDENCE

The island of Cyprus has been populated by Greek and Turkish Cypriots for centuries. In 1960, when the island became an independent state and the last official census was carried out, there were approximately 442,000 Greek Cypriots, representing some 78 percent of the total population, and

² However, as Byman (2002: 23) also notes “once a conflict begins...status concerns and security fears often become interwoven” and “/group's fears of cultural extinction are reinforced by security fears that are often generated by actual violence.”

approximately 100,000 Turkish Cypriots, representing some 18 percent, with the other communities representing the remaining 4 percent (Ker-Lindsay 2011: 1-11). The two communities were not confined to specific areas, but lived in ethnically mixed environments where typically the Turkish Cypriots were economically less well off than Greek Cypriots (Fisher 2001: 309). However, despite living side by side, the two groups shared little common life, used mostly English as common language and intermarried very rarely (Fisher 2001: 309; Ker-Lindsay 2011: 13). Even during the British rule they “had formed only a limited sense of being Cypriot, with a much stronger identity attached to their ethnic groups and the two nations that nurtured them” (Fisher 2001: 309).³ However, it was not until the anti-colonial struggle of the mid-1950s that the violent tensions emerged.

The Greek Cypriot uprising against the British was not the usual fight for independence. It was rather a fight for unity with Greece (*enosis*) inspired by the fact that Cyprus has always been Greek, “by population and heritage“, but never part of Greece (Hitchens 1984: 12).⁴ Instead, it has been governed by the Ottoman empire and the British for the last four hundred years. Despite *enosis* being “based on a sentiment of shared ethnicity and culture [*with the Greeks*] rather than [*being*] an anti-Turkish Cypriot statement”, it led to the alienation of the Turkish Cypriots, their armed resistance and counter-demands for partitioning the island into two separate ethnically-defined entities linked to their respective motherlands (*taksim*) (Fisher 2001: 310; Richmond 1999: 49).⁵ This set the background for the emergence of intercommunal fights, the hardening of identities and new political agendas.

Byman's theory paints a complex picture when applied to the early stages of the conflict. First,

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- 3 Kaufmann (2007: 209) also notes that the British colonial administration allowed the two communities to organize separate school systems with teachers from respective 'mainlands' teaching children “to see themselves as 'Greek' or 'Turkish' not 'Cypriot’.”
 - 4 However, the wish for *enosis* did not first appear in the 1950s, but emerged in the nineteenth century as “part of a wider political movement that sought to liberate and unify all Greeks living under Ottoman rule” (Ker-Lindsay 2011:13-5). Similarly, armed struggle against the British also was not a novelty, but rather a continuation of the violent riots that broke out in 1931 and were later interrupted by the second world war (Ker-Lindsay 2011: 17). It is worth noting as well, that *enosis* had not consistently been rejected by the British. In fact, soon after annexing Cyprus at the outset of the first world war, London offered the island to Athens in exchange for Greece joining the war on its side (Ker-Lindsay 2011: 16). However, Greece declined.
 - 5 However, applying the logic of Azar (*via* Ramsbotham *et al.* 2011: 101), such intercommunal fighting was also a typical result of the British policy of 'divide and rule' in Cyprus where the colonial power benefited from animosity among the communities. Pitting one against the other weakened the anti-colonial struggle and reinforced the perception that only the colonial rule can ensure the safety of all. In fact, the Turkish Cypriots preferred staying under British rule than seeing *enosis* become reality (Ker-Lindsay 2011: 21; Richmond 1999: 49). For Hitchens (1984: 47), the British even actively favored the Turkish Cypriots, “damaging intercommunal relations very severely and perhaps permanently“ along the way.

the Greek Cypriot anti-colonial struggle and the aspiration for *enosis* fueled the ethnic security dilemma. Turkish Cypriots were, arguably for the first time, the target of ethnic violence and perceived their minority position as vulnerable. Seeing the Greek Cypriot resistance movement EOKA (National Organisation of Cypriot Fighters) gaining strength, they responded by forming their own armed militia Volkan and started to side actively with the British (Ker-Lindsay 2011: 21-2).⁶ This in turn increased the security concerns of Greek Cypriots. Similarly, *enosis* fueled Turkish Cypriot concerns about their status. In their eyes, the unification with Greece would result in their cultural, social and political subjugation. Especially so, because according to Mackenzie (via Richmond 1999: 49) it was “clear that Greek Cypriots viewed Turkish Cypriots as second-class citizens at certain levels.” Third, the *enosis* and the perceptions of superiority also led Turkish Cypriots to fear hegemonic ambitions of Greek Cypriots. Although this became much clearer after the breakdown of the 1960 constitutional order, Turkish Cypriots justifiably, in the face of violence, feared that their life after *enosis* would not be better than under the British, rather worse. Lastly, EOKA came to represent more than just an armed struggle against the British. It also united the Greek Cypriots behind the political goal of *enosis* and thus represented the embodiment of Greek nationalism on the island.⁷ In return, it provoked the rise of nationalism among Turkish Cypriots and united them behind their demands for *taksim*.

SECOND PHASE: 1960 INDEPENDENCE AND THE BREAKDOWN OF THE NEW STATE IN 1963-64

The British at first responded to EOKA's actions with force, but soon realized that a political solution was needed, since a possible civil war among the Greek and Turkish Cypriots might have resulted in a conflict between Greece and Turkey. Out of similar concerns, the Greek Cypriots reluctantly accepted independence of Cyprus as an alternative to *enosis*. Negotiations between London, Athens and, to the anger of Greek Cypriots, Ankara led to the independent Republic of Cyprus in 1960 governed by a complex constitutional arrangement ensuring division of power among the two ethnic

⁶ Volkan later received support from Turkey and changed its name to Turkish Resistance Movement (Ker-Lindsay 2011: 22).

⁷ For the ethnic nature of EOKA and its function in uniting Greek Cypriots, see Kaufmann (2007).

communities (Ker-Lindsay 2011: 23-5). In addition, the Treaty of Guarantee that preceded independence “granted Britain, Greece and Turkey the right of unilateral intervention to restore constitutional order“ on the island (ICG 2006: 1). Such an arrangement was no “love at first sight“ for neither of the two communities, especially so for the Greek Cypriots who in fact looked at independence as a “bitter defeat“ (Ker-Lindsay 2011: 29). According to Richmond (1999: 50) “it was inevitable that the Greek Cypriots would manoeuvre to gain majority rights, and the Turkish Cypriot side would follow in order to defend themselves”.

This is what in fact happened in late 1963 when the Greek Cypriot leadership, disappointed by what in their eyes was an unfair power sharing deal granting disproportionate rights to Turkish Cypriots⁸, proposed “a set of constitutional amendments that would have eliminated the bicomunal nature of the Republic and set the stage for a centralized unitary state with minority rights for the Turkish Cypriots“ (ICG 2006: 1). Turkish Cypriots rejected the amendments, left all public positions and intercommunal violence erupted, leading to the collapse of the 1960 constitutional order (*ibid.*).⁹

Throughout the last years of the British rule and the first years following independence the ethnic identities hardened and the ethnic security dilemma worsened. At first, the Turkish Cypriots felt reassured by the involvement of Turkey through the Treaty of Guarantee, but their worst fears soon materialized when ethnic cleansing displaced most of them into enclaves covering just about 5 percent of the island (ICG: 2006: 1; Kaufmann 2007: 206; Ker-Lindsay 2011: 34). On the other hand, the involvement of Turkey increased security concerns of Greek Cypriots.¹⁰ Kaufmann (2007: 214) also notes that the remaining dispersed Turkish Cypriot communities remained a liability for both sides. For

8 The 1960 constitution instituted a political system with the distribution of power on the basis of 70:30 ratio in favor of Greek Cypriots, with the exception of the armed forces where the ratio was 60:40. Pointing to the population figures in 1960, the Greek Cypriots claimed this arrangement was overly favoring Turkish Cypriots (Ker-Lindsay 2011: 26).

9 According to Kaufmann (2007: 211) it took a “stiff warning“ from the U.S. at that point to deter Turkey from invading Cyprus in order to protect the Turkish Cypriots. Soon afterwards, the UN Security Council created the peacekeeping mission UNFICYP that is still present on the island today. (Ker-Lindsay 2005: 8).

10 Richmond (1999: 44) refers to this multi-layered security dilemma on Cyprus as a 'double minority problem', where “Greek/Greek Cypriot alliance would abuse the Turkish Cypriot side while the Turkish/Turkish Cypriot alliance would later abuse the Greek Cypriot side.“ In fact Greek Cypriots are a majority on Cyprus, but a minority in the wider area with Turkey being only 40 miles away (Hitchens 1984: 40).

Turkish Cypriots they were difficult to defend, while to Greek Cypriots they represented possible “justifications for a Turkish ‘rescue offensive’” (*ibid.*). Similarly, the Turkish Cypriot status concerns were at first addressed by the 1960 constitution, but then worsened with its effective suspension. In their eyes, the constitutional amendments proposed in late 1963 also reaffirmed the hegemonic ambitions of Greek Cypriots who saw the 1960 independence as unjust and forcefully imposed on them. The political elites in both communities increasingly drew power from nationalist narratives and continued to believe that *enosis* and *taksim* were a real possibility (Ker-Lindsay 2011: 30).¹¹

THIRD PHASE: THE 1974 TURKISH MILITARY INTERVENTION AND DE FACTO PARTITION

As Fisher (2001: 310) notes, “the remainder of the 1960s and the early 1970s saw continuing segregation between the two communities, punctuated by intermittent crises sparking Turkish involvement and repeated calls for *enosis* by nationalist elements in the Greek-Cypriot community.” Importantly, throughout this period the Republic of Cyprus continued to be governed by Greek Cypriots alone, since Turkish Cypriots never took up their public positions again. The tensions culminated in July 1974 when a Greece-backed military coup d'état by nationalist extremists ousted the Greek Cypriot leadership with the aim of *enosis* (Kaufmann 2007: 207; Pope 2010: 120).¹² Within a few days, Turkey invaded Cyprus, invoking its rights to restore constitutional order under the Treaty of Guarantee and to protect the Turkish Cypriot minority (ICG 2006: 1). The Turkish military offensive led to the death of approximately 6,000 people while occupying 37 percent of the island. Later exchanges of populations moved 140,000 Greek Cypriots to the south and approximately 60,000 Turkish Cypriots to the north (Fisher 2001: 311; ICG 2006: 1-2; Kaufmann 2007: 215). The invasion *de facto* partitioned the island and created “two homogeneous ethnic zones” (Fisher 2001: 311). Ever

11 Kaufmann (2007: 214) notes that Samson, one of the leader of the coup d'état against Makarios in 1974, was “well known as a prolific murderer of Turks in 1955-1959 and again in 1963-1964,” even boasting of it publicly.

12 Interestingly though, by 1974 support for *enosis* had diminished among the Greek Cypriots, but not so among the military junta in Athens and extreme nationalists in Cyprus. The Greek Cypriot leader Makarios spoke against *enosis* already in 1968 out of pragmatic reasons. He realized that in the face of Turkish military superiority, the Greek Cypriots need to find a model of coexistence with the Turkish minority. Additionally, Makarios won reelection in 1968 with 96 percent of the vote against a challenger supporting *enosis*. However, he struggled to control the Cypriot army in the face of increasing pressure by the junta in Athens and Greek troops present on the island. In the end, his attempt to send Greek troops home led to his ousting. (Kaufmann 2007: 211-2)

since, approximately 35,000 Turkish troops have remained stationed on the island (ICG 2006: 2).

Between 1974 and the start of the UN mediation in 1997 little had changed. However, there were four developments worth noting. First, only 14 people had died due to communal conflict since the 1974 ceasefire, effectively ending the intercommunal violence (Kaufmann 2007: 215). Second, according to the International Crisis Group (2006: 2) “Turkey has encouraged immigration to northern Cyprus from the mainland, and today the number of Turkish immigrants is somewhere between 55,000 and 115,000 out of a total population...of about 200,000.”¹³ This had considerably changed the demographic picture in the North and possibly made the Turkish Cypriots a minority. Third, in 1983 the Turkish Cypriots declared their own independent state – the 'Turkish Republic of Northern Cyprus' (TRNC) - that has however remained internationally isolated. At the same time, Greek Cypriots had continued to govern the Republic of Cyprus, achieving comparatively high level of economic development. Fourth, the influence of Athens on Nicosia had greatly diminished since 1974 and rather followed the formula “Nicosia decides and Athens follows” (Ker-Lindsay 2011: 103).

Clearly the ethnic security dilemma continued to worsen in the lead up to 1974 intervention and *de facto* partition. In fact, the Turkish invasion reduced the Turkish Cypriot security fears, since it more than countered the illegal presence of Greek troops on the island and the Greek Cypriot army.¹⁴ With tragic consequence for many Greek Cypriots, the invasion also consolidated the territorial integrity of Turkish Cypriot-inhabited areas, thus reducing their vulnerability. Greek Cypriots had little reason to rejoice. Their military could never challenge Turkey and without external support or guarantees they would be left at the mercy of Ankara. This added a general sense of insecurity, while cementing a fundamental distrust of Turkish Cypriot secessionist objectives (Michael 2007: 591). Athens had since removed the majority of its troops from the island, leaving only the 650 allowed by the Treaty of

¹³ The estimate of 55,000 is based on the Turkish Cypriot census from 1996, while 115,000 is a Council of Europe estimate from 2004 (ICG 2006: 2).

¹⁴ According to Kaufmann (2007: 211) there were almost 11,000 Greek troops on the island in 1967, well over the 650 limit permitted by the Treaty of Alliance.

Alliance. The invasion also relieved some of the status concerns, while causing new ones. Turkish Cypriots gained control of a large territory with negligible Greek Cypriot presence and no challenge to their authority. However, they were growing increasingly frustrated by their international isolation and dependence on Turkey. On their side, Greek Cypriots denounced the arrival of numerous settlers from Anatolia as illegal, fearing for their status if Cyprus was to be reunited. The aspiration for *enosis* and the hegemonic ambitions of Greek Cypriots were effectively dead, as were the hopes for a unitary state (Ker-Lindsay 2005: 12). The physical division of the island and the almost complete separation of the two communities until 2003, prevented “the formation of a bicomunal civil society“ and facilitated “the introspective...nature of their corresponding ethno-nationalisms“ (Michael 2007: 591). The political elites thus had little incentive for developing alternative, bicomunal, narratives and rather continued to enforce separate identities. With the negotiations for EU membership well on their way by the end of 1990s, the Greek Cypriot interest in bridging the intercommunal divide arguably diminished. Furthermore, the feeling of injustice among the Greek Cypriots due to the continued Turkish occupation of the North grew stronger. This were the conditions that the UN mediation needed to address when revived in 1997 under the leadership of the new UN Secretary General Kofi Annan.

2) UN MEDIATION AND THE ASSESSMENT OF THE 'ANNAN PLAN'

“Mediation is a form of third-party intervention in a conflict“ with the purpose of bringing “the conflict to a settlement that is acceptable to both sides and consistent with third party's interests“ (Zartman and Touval 2007: 437). As such, the mediation helps the conflicting parties “by putting them in contact with one another, gaining their trust and confidence, setting agendas, clarifying issues and formulating agreements” (Ramsbotham *et al.* 2011: 181).

According to Zartman and Touval (2007: 437-44) there are some basic prerequisites for the mediation to even start. First, the acceptance of both parties is required. Second, the parties need to

believe that the mediator can bring about an acceptable solution. Third, the parties need to have negotiable positions. Similarly, there are also reasons why the parties decide to accept mediation. First, they might accept it simply because they expect to win. Second, they might do it because rejecting mediation might be harmful to their position. Third, it is often easier to make concessions within mediated negotiations and then package them as gestures of altruism and good will for the public opinion. Fourth, parties in the conflict might also expect guarantees and international approval by entering third-party mediation.

Mediation comes in different forms and Zartman and Touval (2007: 446) differentiate among three main modes of mediation. First, the mediator can act as communicator when contact and direct negotiations between parties is impossible. Second, the mediation can function as formulation when the parties show inability to formulate possible solutions. Third, the mediator can assume a more active role by “using power to bring parties to an agreement, pushing and pulling them away from conflict into resolution” (Zartman and Touval 2007: 446).

Lastly, there are three conditions that favor the success of mediation. Most importantly, the timing of negotiations needs to be ripe. As Zartman (2001: 8) emphasizes “/p/arties resolve their conflict only when they are ready to do so – when alternative, usually unilateral means of achieving a satisfactory result are blocked and the parties feel that they are in an uncomfortable and costly predicament.” In short, they need to enter a 'mutually hurting stalemate' when they perceive *status quo* as painful with no apparent way out. The second condition for success might appear more self-evident, but it sometimes is not - the mediation needs to address the right issues. If it fails to understand the underlying fears of the parties, it will fail to deliver an acceptable solution. Third, the negotiating parties need to “survive the deal“, otherwise they will most probably not honestly engage in explaining to their publics why the solution to the conflict is needed (Crocker 2004: 104).

The UN became involved with the Cyprus problem in 1965 and six secretaries-general have devoted time to the issue since then (Ker-Lindsay 2011, xii). Throughout the years the UN involvement changed both in intensity and nature. As Michael (2007: 594) points out, the UN initiatives grew bolder, moving from simply facilitating negotiations to assuming more manipulative functions.

However, conflict realities also changed. If the UN recommendation to transform Cyprus into a unitary state with strong minority protection for Turkish Cypriots still appeared realistic in 1965, it certainly has not seemed feasible since the 1974 *de facto* partition. Indeed, the 'high-level agreements' of 1977 and 1979 between the two parties reflected new realities on the ground by recognizing that any future solution will be based on an independent 'bi-zonal and bi-communal federation' (Ker-Lindsay 2011: 49-51, 78-9). Ever since, the two communities have “continued to jockey for their desired positions on the federal-confederal continuum“ where the Greek Cypriots favored a stronger central federal government, while the Turkish Cypriots insisted on a looser confederation (Fisher 2001: 315).

External realities have also changed since 1965. First, the Greek-Turkish relations have warmed in the late 1990s, opening the doors for less confrontational participation of Athens and Ankara in the process (Michael 2007: 595).¹⁵ Second, the EU opened membership negotiations with the Republic of Cyprus and this gave Greek Cypriots “leverage...over Turkey's own European aspirations“ (*ibid.*). With this in mind, Ankara adopted a more conciliatory approach to the Cyprus problem especially following the 2002 elections that brought to power the Justice and Development Party under the leadership of Recep Tayyip Erdogan who made Turkey's EU membership a priority (Ker-Lindsay 2005: 24). Not surprisingly the EU course of Nicosia was contested by the Turkish Cypriot leadership that continued to face international isolation and little economic progress. Third, in 1996 the European Court of Human Rights delivered a landmark ruling that declared Turkey as an occupying power in Cyprus and

15 Ker-Lindsay (2005: 23) notes that as a result of this *rapprochement* Greece lifted its opposition to Turkish EU candidacy in December 1999.

ordered the payment of compensation for the loss of property due to the 1974 invasion (Ker-Lindsay 2005: 21). This of course represented a strong moral and political victory for the Nicosia, as well as opened the door for potentially numerous costly claims against Turkey.

The conditions in which Kofi Annan started to address the Cyprus problem in 1997 were thus significantly changed and the conflict's nature did not mirror that of the 1950s. Most importantly, instead of an intrastate ethnic conflict, Annan had to deal with an essentially tripartite interstate conflict between the Republic of Cyprus, the TRNC and Turkey.¹⁶ The negotiations span over several years and proceeded with significant difficulties, this time mostly due to the intransigence of the Turkish Cypriot leader Rauf Denktash. On the procedural level two elements were essential to the final outcome. First, both parties committed to putting the final agreement to a simultaneous, yet separate, referenda at the end of April 2004, just before Nicosia's EU accession. Second, the parties agreed that in the case of a failed agreement on some elements, the UN would fill in the blanks (Ker-Lindsay 2005: 26-7).

When put to the vote on 24 April 2004, the Annan Plan won the support of 65 percent of Turkish Cypriots, but was rejected by 76 percent of Greek Cypriots. Notably, it previously failed to enlist the support of Greek Cypriot leadership and the majority of political parties in Nicosia, including president Tassos Papadopoulos who negotiated the Plan, but called for a 'no' vote (Michael 2007: 597).

ASSESSING THE CONTENT OF THE ANNAN PLAN

In terms of governance, the Annan Plan proposed the creation of a federal United Cyprus Republic composed of two constituent states that would enjoy a single international legal personality and be governed by a complex power-sharing institutional structure guaranteeing political equality among the two communities (ICG 2006: 3-4). In practice this meant that the new state would function as a loose federation with most competencies devolved to the constituent entities. For Greek Cypriots such an arrangement was questionable on three fronts. First, it appeared similarly complex and

¹⁶ Clearly, there were further international considerations due to the British Sovereign Bases still operating on the island, as well as British and U.S. geostrategic interests in the region that included above all favorable relations with Ankara.

dysfunctional as the 1960 constitution, while “creating a 'tyranny of the minority'“ (*ibid.*: 6) and “rewarding...violence“ (Byman 2002: 155). Second, by being arguably closer to a confederation, the organization of the new state left little in the way of an eventual secession by the Turkish Cypriots. Third, with the established political equality the status concerns of Turkish Cypriots would indeed be addressed, but in the eyes of Greek Cypriots, disproportionately so.

In terms of security, the Plan foresaw the dissolution of the Cypriot security forces, the continuation of the Treaties of Guarantee and Alliance and thus also the continued presence of Greek and Turkish troops, while a modified UN peacekeeping mission would monitor the implementation of the agreement (ICG 2006: 4). Arguably, security concerns were the main reason for the Greek Cypriot rejection. First, the continuation of the Treaties denied full sovereignty to the new Republic. To Greek Cypriots, the presence of foreign troops was a remnant of colonial times and thus an insult. Second, the continued presence of Turkish troops and the right of Ankara to intervene considerably angered Greek Cypriots. Turkey has been illegally occupying the North since 1974 in contravention of UN Security Council resolutions and the decision not to discontinue Ankara's military presence was not an adequate response to their security concerns (Ker-Lindsay 2011: 68; Michael 2007: 599). Of course, for Turkish Cypriots the opposite was true. For them, the Turkish troops on the island were a security guarantee.

In terms of territorial adjustments, the Annan Plan reduced the area administered by Turkish Cypriots from 37 percent to 28.5 percent, allowing “the majority of Greek Cypriot displaced persons to return to their properties under Greek Cypriot rule“ (ICG 2006: 4). The rest would receive compensation through a complex mechanism, but would be prevented to return in order to preserve the Turkish Cypriot majority in the North. Greek Cypriots saw this as an unjust limitation that hindered the freedoms of property ownership and settlement on the island, something that Greek Cypriots have emotionally espoused through the years (*ibid.*: 6). As Michael (2007: 599) notes, the Annan Plan in this

respect “failed to...satisfactorily address their emotional attachment to land.”¹⁷

There were other issues that featured importantly as arguments against the Plan among the Greek Cypriots. There was considerable disappointment about the fact that 40,000 settlers would be allowed to remain (Ker-Lindsay 2011: 88). Greek Cypriots perceived Ankara's 'demography politics' as a status concern, especially because the actual number of settlers remained unknown. There was also considerable bitterness about the financial aspects of the Plan. In fact, the Greek Cypriots believed that following unification Ankara would not carry any responsibility for reconstruction, despite the fact that its invasion caused sizable damage and led to the economic isolation of the North.

WAS THE TIMING RIPE?

Was the moment ripe for the mediation and the Annan Plan to succeed? Were the parties stuck in a mutually hurting stalemate? There are many arguments that lead to an ambivalent answer. When pushing for the completion of the talks, Kofi Annan believed that the prospect of EU accession could act as positive influence. He also saw a window of opportunity due to the warming relations between Greece and Turkey, as well as due to the change of government in Ankara and the emergence of anti-Denktaş sentiments in the TRNC (Michael 2007: 595-6).

However, there were convincing arguments against the 'ripeness' of the moment. First, the *status quo* was relatively painless for both parties. As Ker-Lindsay (2011: 103) notes, “there is [*and was*] no conflict on the island“ and there was no indication that things would be getting any worse. Second, at least the Greek Cypriots were enjoying economic progress and for most of them the *status quo* was quite comfortable (ICG 2006: 9).¹⁸ Third, the Greek Cypriots were about to join the EU on 1 May 2004, even if the peace process would fail. For them any “anxiety was comforted by the certainty of EU accession”, while at the same time giving them strong leverage over the future of Turkey's EU

17 Similar argument is made also by Ker-Lindsay (2011: 68). The same author (2011: 85) also addresses the opposite concerns of the Turkish Cypriots, who argue that it “would make it impossible to create a Turkish Cypriot federal unit“ if all property is returned to the Greek Cypriot owners.

18 However, as Pope (2010: 123) notes, the opposite was true for the Turkish Cypriots who have long been suffering economic and political isolation that increased their dependence on Turkey.

membership (Michael 2007: 594, 597). In hindsight, it appears that for the Greek Cypriots, there was “no need to accept the Annan Plan” (Ker-Lindsay 2011: 70).

THE MODE OF UN MEDIATION

The UN mediation in the final phase assumed an increasingly 'manipulative' mode in two ways. First, as mentioned earlier, it forced the parties to agree into a final deadline of the talks by holding the referenda a week before the scheduled EU accession of Nicosia. Furthermore, the fact that the final version of the Plan was made available only a few days before the vote “did not allow for reflection” (Michael 2007: 597-8). Under pressure and with EU membership in sight, the Greek Cypriots and their leadership perceived the rejection as a better deal. Second, the Greek and Turkish Cypriots consented that failing their agreement, the mediators would fill the missing gaps. However, once those gaps were filled, there was nothing that would force the parties to support the content against their will. Especially so in the case of Greek Cypriots who felt betrayed when the UN supposedly filled the gaps with Turkish and Turkish Cypriot suggestions in the very last hours on negotiations (Palley 2005: 136-43).¹⁹

In order to encourage the two leaderships to campaign in favor of the deal, the UN mediation should also have proved “that retaining unilateral policy option is more expensive”, thus changing their perceptions of costs and benefits (Zartman and Touval 2007: 445). Instead, it appears that at least the Greek Cypriot leadership was not convinced by the reduction of Turkish troops on the island and its “rejectionism rested on [the] conviction that the negative consequences resulting from a yes vote far outweighed those from a no vote” (Michael 2007: 597) .

Finally, Michael (2007: 597) also notes that the absence of UN engagement with the two communities beyond the political elites might have been a reason for rejection. As he writes, “all opinion polls had most Greek Cypriots rejecting the Annan Plan consistently since it first appeared in November 2002” (*ibid.*). Such 'track-II' engagement could have increased the legitimacy of the Plan

¹⁹ To make the point Palley (2005: 221) emphasizes that the Greek Cypriots perceived the Annan Plan as “a foreign plan, a UN construction imposed upon them”. However, it is important to note that Palley acted as constitutional consultant to the President of the Cyprus between 1980 and 2004.

and convinced the Greek Cypriot political leadership to support it.

CONCLUSION

The UN mediators have undoubtedly put significant effort into the negotiations that led to the Annan Plan. However, the strong rejection by the Greek Cypriots shows that they failed to adequately address some of the Greek Cypriot concerns and change some of their perceptions.

In terms of security, the Greek Cypriots especially resented the continued stationing of the Turkish troops on Cyprus and Ankara's right to intervene under the Treaty of Guarantee. An alternative international peacekeeping arrangement would probably have addressed the security concerns of both communities better. In terms of governance, the Greek Cypriots had serious concerns about the functioning of the new state, as well as about the possibility that the loose federation gave to Turkish Cypriots to secede.

Apart from substantive reasons, there is ample evidence that, unfortunately, the time was not ripe. First, the parties were not in a 'mutually hurting stalemate' and the *status quo* was about to improve for Nicosia with its accession to the EU. Indeed, as events have shown, since the 1 May 2004 the Greek Cypriot leadership acquired important leverage on Turkey's own EU accession progress. In addition, earlier public opinion polls showed that Greek Cypriots largely opposed the Annan Plan. For the political elites in Nicosia its adoption represented a risk they did not need to take, especially under such time pressure. Similarly, they were probably not ready yet to give up the political benefits that the nationalist narrative offered as long as the island remained divided.

In hindsight, the decision of the Greek Cypriot political leadership appears rather rational and pragmatic. Unfortunately, the UN mediators failed to anticipate it in the last stage of negotiations.

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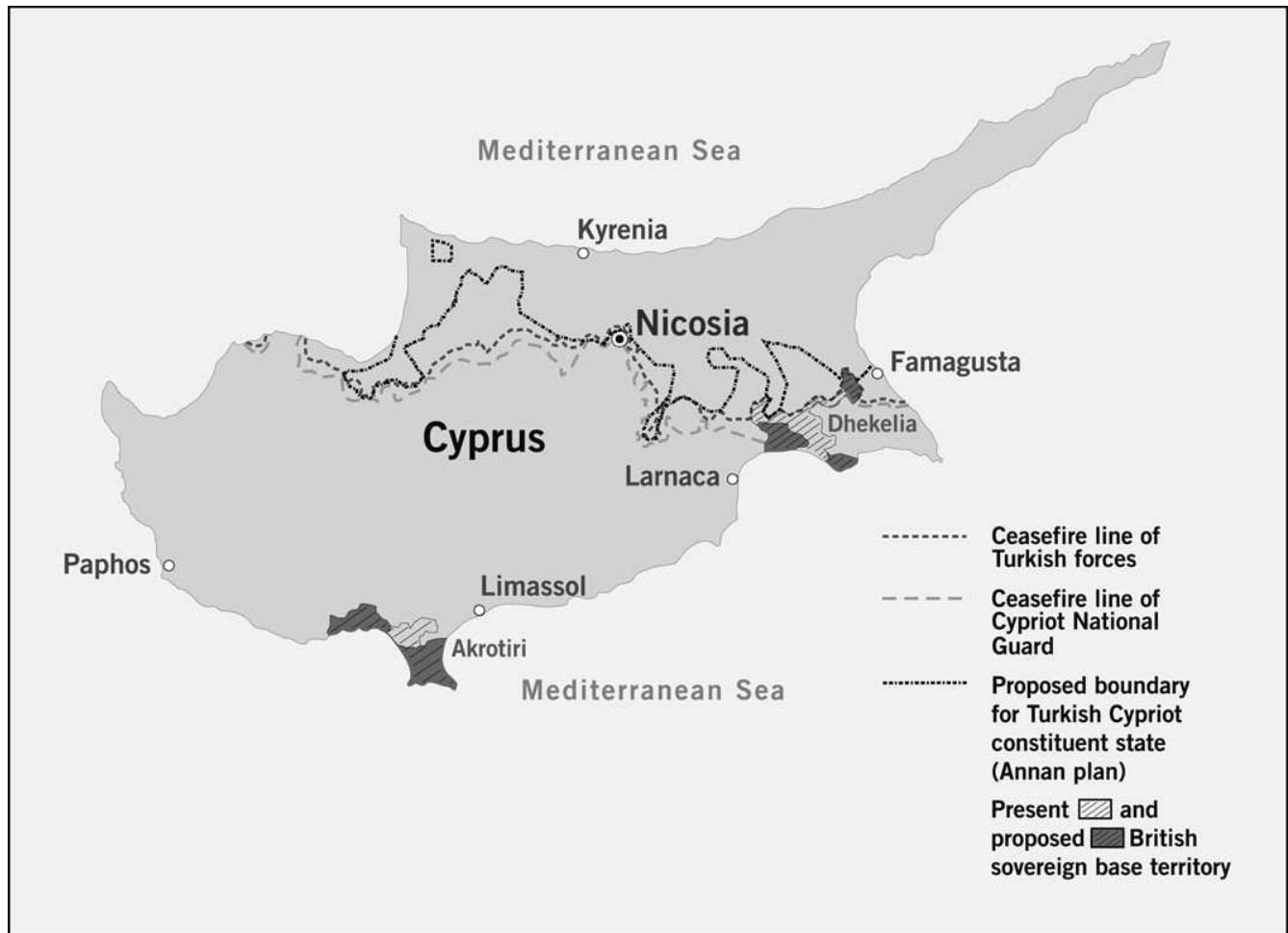
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APPENDIX 1: Map of Cyprus



Source: International Crisis Group (2006)